

APPLICATION FOR **TEXT AMENDMENT** UNDER THE REGULATIONS OF THE Mc LEAN COUNTY ZONING ORDINANCE

APPLICANT NAME: McLean County Land Use and Transportation Committee ADDRESS: 115 E Washington Street Bloomington, IL 61701 PHONE: - home: work:	FOR OFFICIAL USE ONLY CASE NO.: ZA - 26 - 01	
ATTORNEY NAME: ADDRESS: PHONE:- home: work:	FILING FEE \$ <u>0.00</u> RECEIPT NO. _____ PUB. COSTS \$ <u>96.12</u> RECEIPT NO. _____ HEARING DATE <u>3-3-26</u> HEARING TIME <u>7:00 p.m.</u> DECISION DATE <u>3-12-26</u>	RECEIVED FEB 03 2026 ZONING FILE STAMP

Application is hereby made to amend Section 350-42 and 350-43 of the text of the McLean County Code as attached.

(Please attach amendment in exact language proposed.)

EXHIBIT A

Chapter 350: Zoning and Chapter 205 Zoning Fees The McLean County Zoning Ordinance

(Additions are indicated by text and stricken material by ~~text~~)

Section 350-42 Use Table.

The use table provides a tabular summary of the land use types allowed within each base zoning district. The table is intended for reference and does not necessarily reflect all of the regulations that may apply to particular uses or districts. In the event of conflict between the use regulations listed within this article and the zoning district regulations of Article V, the text of the zoning district regulations shall prevail.

- A. Permitted (by right). Uses identified in a zoning district column of the Use Table with a "P" are "permitted by right" and shall be permitted in such zoning district. Permitted uses shall also be subject to the standards and regulations as may be indicated in the "Use Standards" column and all other requirements of this chapter.
- B. Special uses. Uses identified in a zoning district column of the Use Table with an "S" are "special uses" and shall be permitted in such zoning district if reviewed and approved in accordance with the standards of Article VIII. Special uses shall be subject to the standards and regulations as may be indicated in the "Use Standards" column and all other requirements of this chapter.
- C. Not permitted. Uses not identified in a zoning district column of the Use Table as permitted by right or by special use are not allowed in such zoning district unless otherwise expressly permitted by other regulations of this chapter.
- D. Use standards. A letter in the "Use Standards" column of the Use Table refers to standards and regulations applicable to the particular use in one or more of the districts in which such use is allowed. The referenced standards appear as subsections in § 350-43 of this article.

ZONING DISTRICTS

Use Type	A	R-1	R-2	C	M-1	M-2	Use Standards
<u>Data Center</u>	S			S	S	S	<u>FFF</u>

Section 350-43. Use Standards.

The use standards of this section shall apply to permitted uses, special uses and accessory uses as noted.

FFF Data Center. Shall comply with the following:

- (1) A landscaping screen shall be provided for any part of the Data Center that is visible to and located within five hundred (500) feet of an existing dwelling. The screening shall include a continuous line of native evergreen foliage, and/or native shrubs, and/or native trees, and/or any existing wooded area. The screening shall be maintained for the duration of the facility.
- (2) Lighting shall be installed for security and safety purposes only and shall be shielded so no glare extends substantially beyond the boundaries of the facility.

- (3) The facility owner shall provide a road use agreement and approval for access from the road authority.
- (4) The facility owner shall provide an emergency plan that shall also be submitted to the local fire protection district. Any specialized training necessary will be provided at the operator's expense.
- (5) The amount of water and the source of water for the facility shall be provided.
- (6) The amount of electricity and the source of electricity for the facility shall be provided.
- (7) A Battery Energy Storage Systems (BESS) may be an accessory use to the facility if the BESS serves only the Data Center with a capacity no greater than five megawatts.
- (8) The Data Center shall comply with noise limits established by the Illinois Pollution Control Board.